

Parliament assembled, and by the authority of the same, as follows:—

Registration
of persons
registered as
pharmaceu-
tical chem-
ists in
Northern
Ireland.
15 & 16 Vict.
c. 56.
8 Edw. 7.
c. 55.

1. The power of the Council of the Pharmaceutical Society of Great Britain to make byelaws under section two of the Pharmacy Act, 1852, as extended by section four of the Poisons and Pharmacy Act, 1908, shall be deemed to include power to make byelaws providing for the registration, upon payment of the prescribed fee, as pharmaceutical chemists or chemists and druggists under the Pharmacy Acts, 1852 and 1868, without examination, of persons registered as pharmaceutical chemists in Northern Ireland who produce evidence satisfactory to the Council that they are persons of sufficient skill and knowledge to be so registered.

Short title.

2. This Act may be cited as the Pharmacy Act, 1929.

CHAPTER 32.

An Act to regulate the sale and manufacture of artificial cream. [10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Regulation
of sale of
artificial
cream.

1.—(1) No person shall sell or offer or expose for sale for human consumption under a description or designation including the word “cream” any substance purporting to be cream or artificial cream as defined in this Act unless—

- (a) the substance is cream as defined in this Act, or
- (b) where the substance is artificial cream as defined in this Act, the word “cream” is immediately preceded by the word “artificial.”

(2) Every receptacle used for the conveyance of artificial cream for sale for human consumption, or containing artificial cream at any time when it is exposed for such sale, shall have the words “artificial cream”

printed in large and legible type either on the receptacle itself or on a label securely attached thereto.

(3) If any person contravenes any of the provisions of this section, he shall be guilty of an offence against this Act.

2.—(1) Artificial cream shall not be manufactured, sold or exposed or kept for sale for human consumption except at premises registered with the Food and Drugs Authority :

Registration
of premises
where
artificial
cream is
manu-
factured or
sold.

Provided that this requirement shall not apply—

- (a) to the manufacture of artificial cream, by any person solely for his domestic purposes; or
- (b) to the manufacture on any premises of artificial cream for use in the preparation on those premises of some other article of food; or
- (c) to the sale, exposure or keeping for sale of artificial cream on any premises where it is not supplied otherwise than in the properly closed and unopened receptacles in which it was delivered to those premises.

(2) The Food and Drugs Authority shall keep a register of premises under this section, and shall on application being made by the owner or occupier of any premises enter the premises in the register and shall from time to time revise the register as occasion may require.

(3) Any officer of the Food and Drugs Authority duly authorised in that behalf by the authority may at all reasonable times enter and inspect any premises registered with the authority under this section.

(4) If a justice of the peace is satisfied by information on oath that there is reasonable ground for supposing that any unregistered premises are being used for the manufacture of artificial cream contrary to the provisions of this section, he may grant a search warrant authorising any such officer as aforesaid to enter and inspect the premises and to search for and seize any machine suitable for use in the manufacture of artificial cream.

(5) If any person uses any unregistered premises for the manufacture or sale of artificial cream in contravention of this section, or obstructs any such officer

as aforesaid in the execution of his powers under this section, or fails to give any such officer all reasonable assistance in his power, or to furnish him with any information he may reasonably require, he shall be guilty of an offence against this Act.

Application
to artificial
cream of
provisions
relating to
cream.
5 & 6 Geo. 5.
c. 66.

3. Such of the provisions of the Public Health Acts, 1875 to 1926 (or, in London, the Public Health (London) Acts, 1891 to 1926), and the Milk and Dairies (Consolidation) Act, 1915, and of any order or regulation made under any of those Acts, as relate to cream (other than those relating to registration) shall apply to artificial cream.

Enforce-
ment of
Act.

18 & 19
Geo. 5. c. 31.

4. It shall be the duty of every Food and Drugs Authority to enforce the provisions of this Act, and any expenses incurred by the authority for that purpose shall be defrayed as expenses under the Food and Drugs (Adulteration) Act, 1928 :

Provided that this section shall not apply to such of the provisions of any Act, order or regulation applied by this Act as are enforceable by any other authority.

Penalties.

5.—(1) If any person commits an offence against this Act, he shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, five pounds, in the case of a second or subsequent offence, fifty pounds, and in any case where the offence is a continuing offence, to a further fine not exceeding forty shillings for each day during which the offence continues.

(2) For the purposes of proceedings under this Act—

- (a) where artificial cream is sold or offered, exposed or kept for sale, it shall be presumed to be sold or offered, exposed or kept for sale for human consumption unless the contrary is proved;
- (b) where any article having the composition of cream or artificial cream is sold or exposed or kept for sale on premises registered under this Act, it shall be presumed to be artificial cream unless the contrary is proved.

(3) The provisions of subsection (6) of section twenty-seven and of sections twenty-nine and thirty of the Food and Drugs (Adulteration) Act, 1928, relating

to offences and warranties under that Act, as set out with the appropriate modifications in the Schedule to this Act, are hereby incorporated with this Act and shall apply to proceedings under this Act.

6. In this Act—

Definitions.

“Food and Drugs Authority” has the same meaning as in the Food and Drugs (Adulteration) Act, 1928;

“Cream” means that portion of natural milk rich in milk fat which has been separated by skimming or otherwise;

“Artificial cream” means an article of food resembling cream and containing no ingredient which is not derived from milk except water or any ingredient or material which by virtue of the proviso to subsection (2) of section two of the Food and Drugs (Adulteration) Act, 1928, may lawfully be contained in an article sold as cream.

7. This Act shall apply to Scotland subject to the following modifications:— Application to Scotland.

(a) The following section shall be substituted for section three—

Such of the provisions of the Milk and Dairies (Scotland) Act, 1914, and of any order, regulation or byelaw made under that Act as relate to cream (other than those relating to registration) shall apply to artificial cream: 4 & 5 Geo. 5.
c. 46.

(b) The expression “defendant” shall mean “respondent,” and the expression “information” shall mean “complaint.”

8.—(1) This Act may be cited as the Artificial Cream Act, 1929. Short title, commencement and extent.

(2) This Act shall come into operation on the first day of June, nineteen hundred and twenty-nine.

(3) This Act shall not extend to Northern Ireland.

SCHEDULE.

PROVISIONS OF FOOD AND DRUGS (ADULTERATION) ACT, 1928, APPLIED.

1. Where an employer is charged with an offence against this Act, he shall be entitled, upon information duly laid by him, to have any other person whom he charges as the actual offender brought before the court at the time appointed for hearing the charge, and if, after the commission of the offence has been proved, the employer proves to the satisfaction of the court that he had used due diligence to enforce the execution of this Act, and that the said other person had committed the offence in question without his knowledge, consent or connivance, the said other person shall be summarily convicted of the offence, and the employer shall be exempt from any penalty.

2. Subject to the provisions of this schedule a defendant shall be discharged from any prosecution under this Act for selling, or offering or exposing for sale artificial cream, if he proves to the satisfaction of the court that he had purchased the article in question as cream, and with a written warranty or invoice to that effect, and that he had no reason to believe at the time of the commission of the alleged offence that the article was not cream and that at that time the article was in the same state as when he purchased it.

3. A warranty or invoice shall only be a defence to proceedings under this Act if—

- (a) the defendant has within seven days of the service of the summons sent to the prosecutor a copy of the warranty or invoice with a written notice stating that he intends to rely on it and specifying the name and address of the person from whom he received it and has also sent a like notice of his intention to that person; and
- (b) in the case of a warranty or invoice given by a person resident outside the United Kingdom the defendant proves that he had taken reasonable steps to ascertain, and did in fact believe in the accuracy of the statement contained therein.

4. The person by whom the warranty or invoice is alleged to have been given shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

5. Where the defendant is a servant of the person who purchased the article under a warranty or invoice he shall be entitled to rely on the provisions of this schedule in the same way as his employer would have been entitled to do if he had been the defendant, provided that the servant further proves that he had no reason to believe that the article was not cream.

6. Every person who wilfully applies to an article in any proceedings under this Act a warranty or invoice given in relation to any other article, shall be guilty of an offence against this Act.

7. Every person who, in respect of artificial cream sold by him as principal or agent, gives to the purchaser a false warranty in writing, shall be guilty of an offence against this Act, unless he proves to the satisfaction of the court that when he gave the warranty he had reason to believe that the statements or descriptions contained therein were true.

8. Where the defendant in a prosecution under this Act has been discharged under the provisions of this schedule relating to warranties, any proceedings under this schedule for giving the warranty relied on by the defendant in the prosecution, may be taken as well before a court having jurisdiction in the place where the contravention of this Act took place as before a court having jurisdiction in the place where the warranty was given.

CHAPTER 33.

An Act to enable highway authorities and the owners of bridges carrying public carriage roads to make agreements with respect to the maintenance, improvement, reconstruction and transfer of such bridges, and of the approaches thereto and the roads carried thereby; to empower the Minister of Transport, in the absence of any such agreement, to make orders with respect to the matters aforesaid and for purposes incidental to the making of such agreements and orders.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present